



File No.: EXP202305618

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 7, 2023, a complaint was received by this Agency filed by Ms. A.A.A. (hereinafter, the complainant) against the TOWN HALL OF VILLA DEL PRADO (hereinafter, the respondent) for not having duly addressed the right of access.

The respondent convened an informational meeting with the residents of ***LOCALITY.1 for January 27, 2023. In this meeting, a representative of the respondent clarified that the residents could not record the meeting, as they would do so themselves, without notifying that it would be published on the IVOXX platform (***URL.1).

In order to participate in the meeting, citizens had to identify themselves with their name, surname, and address. The complainant asked a series of questions, having to identify themselves to formulate them.

According to the complainant, the respondent published the meeting without anonymizing their personal data and without informing them of the purpose of the dissemination; therefore, they conclude that Article 11 of the LOPDGDD has been violated.

On January 30, 2023, the complainant requested from the respondent "an explanation from the Town Hall regarding the reason for requesting my affiliation, for how long these data will be kept, the reasons why my data is circulating freely, and the rights that protect me. I request a response within the 30 business days that the law grants you for this, reserving the actions that you deem appropriate," along with a document to exercise the right of access.

The complainant states that their request has not been answered within the one-month period.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent states, in summary, that

C/ Jorge Juan, 6

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28001 – Madrid

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2/7

"1. A written request for the right of access has been received, and the requested data has been reviewed and deleted.

2. The resident herself has called the Town Hall several times to request the deletion of the audio from the platform; on the last occasion, she was informed that the audio from the IVOOX platform had been deleted.

3. The audio has been deleted from the IVOOX platform. A screenshot is attached for verification.

4. This was done via a phone call.

5. This is not an incident; it is a meeting of residents that they themselves requested to be recorded for public dissemination."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on June 7, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten business days, stating, in summary, that

- “- The meeting referred to in the written complaint was convened by the previous government team, and the organization of that call is unknown.
- The Town Hall, since its establishment, has had an accumulated General Secretariat, and this position is currently vacant, making it impossible to carry out any actions to respond to this writing since data could not be collected.
 - The current Corporation is unaware of the destination of the data mentioned in the writing, having not listened to audios, viewed videos, or seen personal data that has been recorded on paper or any other computer format.
 - There is indeed a document from the interested party Ms. A.A.A., dated 01/30/2023, with registration number ***REGISTRO.1, in which she requests an explanation from the Town Hall regarding the use of the data mentioned and a response from the Town Hall within the following 30 business days. As of the establishment of the current Corporation, this request had not been answered.
 - The actions carried out by the government team to update pending municipal matters, as well as to determine their importance and/or severity, or urgency (...), their immediate attention, and the reorganization of human resources have not facilitated a thorough understanding of municipal matters and decision-making.

C/ Jorge Juan, 6

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28001 – Madrid

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3/7

Therefore, this City Council requests, as far as possible, an extension of the deadline to provide a substantiated response to the interested party, without this City Council incurring a breach of the current legislation and being attributed to unforeseen circumstances of force majeure.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on June 7, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted

for processing. This admission for processing determines the opening of the present procedure concerning the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to rectify any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the interested party, and to state their reasons if they do not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

C/ Jorge Juan, 6

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5/7

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the “data or processing activities to which the request refers.” The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal

data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

In the case analyzed here, it has been established that the claiming party exercised their right of access, and that, after the period established in accordance with the aforementioned regulations had elapsed, their request did not receive the legally required response, as the requested access was not provided.

During the processing of this procedure, after the complaint was forwarded to the responding party, they stated that "A request for the right of access has been received, and the requested data has been reviewed and deleted."

C/ Jorge Juan, 6

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6/7

In response to the admission of the claim, the respondent states, in summary, that they acknowledge the request submitted, that the current Corporation is unaware of the destination of the data, and that this exercise was not answered, requesting an extension of the deadline to address the right.

However, as of the date of drafting this resolution, there is no record that any response has been received by this Agency.

It should be noted that when exercising the right of access, it cannot be accepted that, by carrying out the deletion of personal data, under the guise of the regulations, the right of access exercised is left unanswered.

According to data protection regulations, the deletion of data as established in Article 32 of the LOPDGDD must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, will not automatically imply its physical deletion. This action is subject to certain conditions aimed at ensuring and guaranteeing the affected person's right to the protection of their personal data.

In this regard, personal data subject to the blocking modality does not allow for its processing, but it does not imply that the data that the controller had and processed while the relationship lasted cannot be made available to the affected party, in case responsibilities arise from its processing or because it is deemed more protective to provide the personal data that is blocked for the knowledge of the interested parties.

The blocked data will be available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly data protection authorities, for the requirements of possible responsibilities arising from the processing and for the statute of limitations of these.

Therefore, the request for access must be addressed in accordance with the provisions of Article 15 of the GDPR.

It cannot be accepted that the response that corresponds to be given may be manifested on the occasion of a mere administrative procedure, such as the formulation of allegations regarding the present procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the controllers must issue, even in cases where there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of the request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot

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7/7

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision taken regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR and the LOPDGDD have been infringed, and to urge the TOWN HALL OF VILLA DEL PRADO with NIF P2817100G, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to the TOWN HALL OF VILLA DEL PRADO.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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